Section Contents

62 Speed Control
64 Passing
65 Keeping to the Right
65 Yielding the Right-of-Way
66 Pedestrians in a Crosswalk
67 Intersections
68 Entering Highways, Parkways, and Turnpikes
69 Leaving Highways, Parkways, and Turnpikes
70 Special Highway, Parkway, and Turnpike Conditions
72 Curves
72 Interchanges
72 Turning Regulations
74 Stopping Regulations
82 Using Headlights
83 Parking Regulations
84 Cellular Telephones
86 Littering

Speed Control

Exceeding the speed limit is a common contributing factor of fatal and other types of crashes. A motorist must always obey the speed limit. Speed affects almost everything that can happen when driving. A good rule is to keep up with the flow of traffic at any legal speed. To make safe emergency stops when necessary, it is important to keep enough distance from surrounding traffic. New Jersey law sets top speed limits for any given road, street, highway, or freeway.

25 mph
School zones, business, or residential districts

35 mph
Suburban business and residential districts

50 mph
Non-posted rural roadways

55 mph
Certain state highways (as posted) and interstates

65 mph
Certain interstate highways (as posted)

Motorists pay double fines for exceeding the 65-mph limit by 10 miles per hour or more. Double fines also apply to most other moving violations committed in a 65-mph zone. (N.J.S.A. 39:4-98.6)

NEW JERSEY LIMITS (UNLESS OTHERWISE POSTED) (N.J.S.A. 39:4-98)

Never drive faster than weather, road, or other conditions safely allow, regardless of the posted speed limit. A motorist should judge his/her speed control by existing conditions. A motorist should slow down enough to be able to see clearly and stop quickly in traffic. Failure to do so can result in a moving violation.

Always slow down:

- On narrow or winding roads.
- At intersections or railroad crossings.
- On hills.
- At sharp or blind curves.
- Where there are pedestrians or driving hazards.
- When the road is wet or slippery.

If vehicle problems prevent a motorist from keeping up with the normal flow of traffic, he/she should pull off the road and activate hazard lights.

DRIVING TOO SLOWLY

A motorist should always try to keep up with the normal flow of traffic, while not exceeding the posted speed limit. Some crashes are caused by driving too slowly and backing up traffic. When road surfaces and traffic are normal, New Jersey law prohibits blocking traffic through slow driving. (N.J.S.A. 39:4-56)

SAFE CORRIDORS (N.J.S.A. 39:4-203.5)

To improve highway safety, New Jersey initiated the Safe Corridors Program, which was signed into law in July 2003. The Safe Corridors law doubles fines on various state highways for a variety of driving offenses, including speeding and aggressive driving. Highways are designated as safe corridors based on statistics showing crash rates 50 percent over the state rate and 1,000 or more crashes reported over a three-year period. The Commissioner of Transportation has the authority to designate safe corridors as necessary, as well as to remove those that show improved safety levels. A current list of Safe Corridor highways is available on the New Jersey Department of Transportation website at **www.nj.gov/transportation**.

Passing

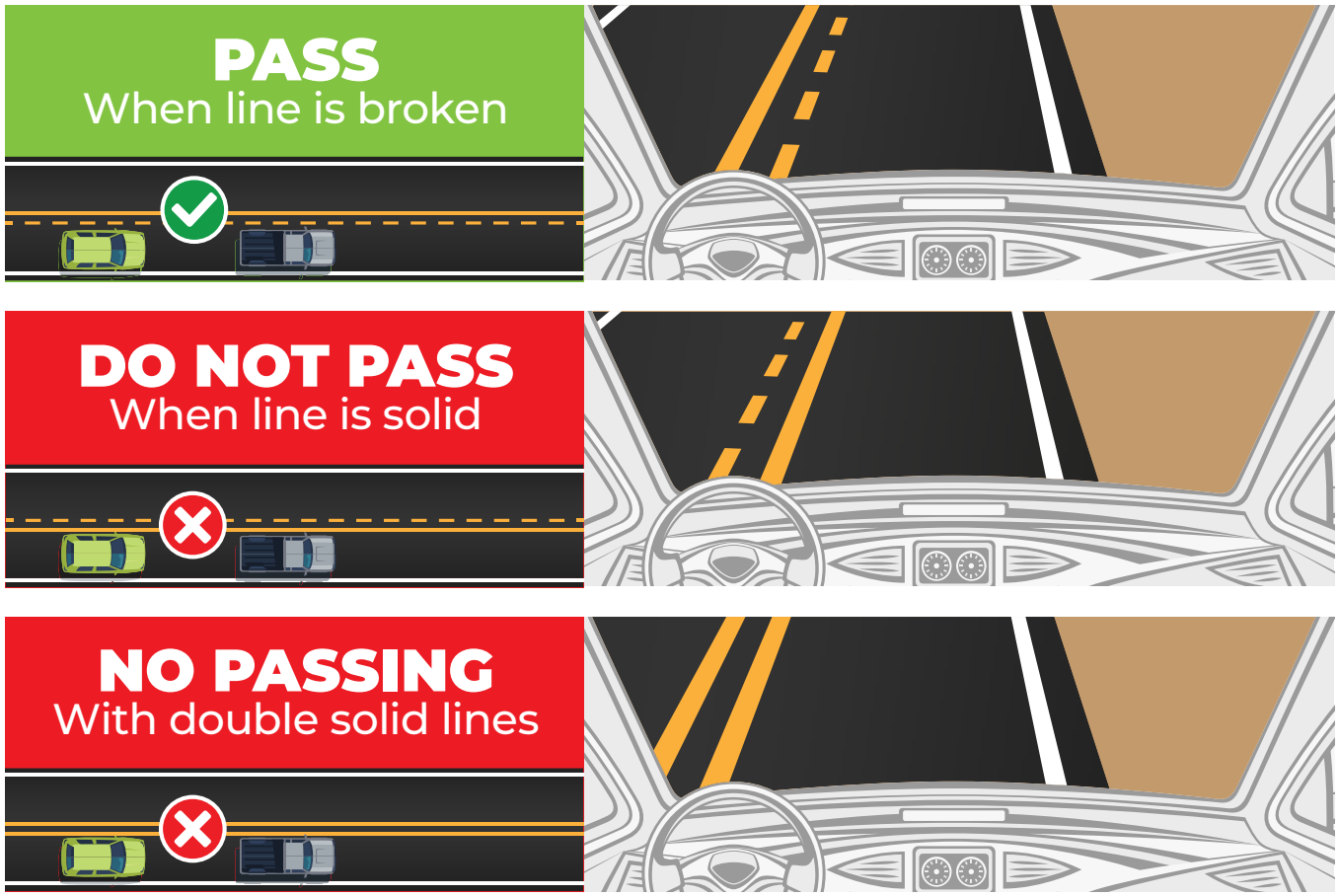
A motorist must know the proper lane for normal driving and how to change lanes safely. The rules for passing depend on the type of road. Stay to the right of the roadway's center lines. Passing is only safe when there is no oncoming traffic.

Watch for the following lane markings: (N.J.S.A. 39:4-86)

- Both center lines are solid: No passing allowed.
- One center line is broken: Passing is allowed only on the side with the broken line.
- Both center lines are broken: Passing is allowed on both sides.

Note: All passing must be completed before the center lines are solid again.

PASS ONLY WHEN SAFE



Most passing should be on the left. Passing on the right is allowed only on roads with more than one lane going in the same direction, if vehicles on the roadway are moving in two or more substantially continuous lines or when the motorist ahead is making a left turn and there is room to pass. Never pass on the right shoulder of the road. This is against the law. (N.J.S.A. 39:4-85)

A motorist should not pass:

- On a hill or curve or at any time he/she cannot see far enough ahead.
- At a street crossing or intersection.
- At a railroad crossing.
- On narrow bridges or in underpasses or tunnels.
- When a sign prohibits passing or center lines restrict passing.
- When behind a vehicle that has stopped to let a pedestrian cross.

Keeping to the Right

The laws of New Jersey require motorists to keep to the right, except when passing. Motorists must drive on the right half of the roadway unless driving on a one-way street. Motorists must drive a vehicle as close as possible to the right-hand edge or curb of the roadway, except when overtaking and passing another vehicle. (N.J.S.A. 39:4-82)

On a multi-lane roadway, motorists must drive in the lane nearest to the right-hand edge or curb of the roadway when the lane is available for travel, except when overtaking another vehicle or in preparation for a left turn. (N.J.S.A. 39:4-88)

Yielding the Right-of-Way

Although laws govern the right-of-way, a motorist should always be prepared to yield. These basic rules always apply:

- **Emergency vehicles**
  When police cars, fire engines, and ambulances are giving warning signs (sirens, flashing lights).
- **Trains**
  when a train is approaching a railroad crossing.
- **Buses**
  When re-entering the flow of traffic.

- **Postal vehicles**
  When the vehicle re-enters the flow of traffic.
- **Motorized or mobility-assistance devices**
  When in a crosswalk or seeking to cross a road.
- **Other vehicles**
  That are already in the intersection.

Pedestrians in a Crosswalk

New Jersey has experienced many pedestrian injury crashes and fatalities, as compared to the nation as a whole. The most important pedestrian safety message for New Jersey residents is: Pedestrian safety is a shared responsibility. There is no single cause of crashes involving pedestrians. Pedestrians and motorists must all do their part to keep pedestrians safe.

A motorist must:

- Stop for pedestrians in crosswalks. Failure to stop carries a fine of up to $500, up to 25 days in jail, community service, a driving privilege suspension of up to 6 months, and 2 points. (N.J.S.A. 39:4-36)
- Watch for pedestrians when turning on red.
- Obey speed limits.
- Be sure not to block or park in crosswalks.
- Keep the vehicle's windshield clean for maximum visibility.
- Be always alert for pedestrians.
- Be aware of areas where pedestrians are most likely to appear (near schools, town centers, residential neighborhoods, parks).
- Never pass another vehicle that has stopped for a pedestrian.
- Stop for all pedestrians in a crosswalk even if they began crossing with a proper signal and they are still in the crosswalk when the signal changes.
- Remember that pedestrians are the most vulnerable roadway users. Motorists will be held responsible for maintaining pedestrian safety.

Intersections

An intersection is where two or more roads cross or merge at angles. As most crashes occur at intersections, a motorist should be aware of the four types of intersections and know how to safely navigate through them. A single solid white line across a road at an intersection means that a motorist must stop behind the line for a traffic signal or sign.

CONTROLLED

An intersection is controlled if there are traffic signals or signs in any direction or controlled by a police officer. A motorist must obey the signals and signs. At a controlled intersection, a motorist must yield for certain conditions. At a multi-way stop or stop intersection, a motorist must yield to the motorist on the right if both motorists get there at the same time. A motorist should also yield to another motorist already stopped at the intersection. At an intersection controlled by a yield sign, a motorist must slow down and yield to traffic on the intersecting roadway, even if he/she must stop. When making a left turn at an intersection, a motorist must yield to oncoming traffic and stop for pedestrians within the crosswalk.

A motorist is prohibited from entering or crossing an intersecting street marked with a stop sign unless he or she first brings the vehicle to a complete stop at a point within five feet of the nearest crosswalk or stop line marked upon the pavement at the near side of the intersection street. The motorist may only proceed after yielding the right-of-way to all traffic on the intersection street, which is so close as to constitute an immediate hazard.

Note: Driving on private property to avoid a traffic signal or sign is a motor vehicle violation. (N.J.S.A. 39:4-66.2)

UNCONTROLLED

An intersection is uncontrolled when two or more roads join and there is no traffic signal or regulatory device. A motorist must be careful when approaching these types of intersections. Most of the time there will be a warning sign prior to reaching the intersection. As a motorist nears a crossroad that is not controlled, he/she must reduce speed and be ready to stop if any traffic is coming from the right or left. A motorist coming from a private road or driveway must yield to all traffic on the main road. As a rule, the vehicle on the left should yield to the vehicle on the right. When a traffic signal is not illuminated because of a power failure or other malfunction; the traffic signal is observed as a 4-way stop signal. (N.J.S.A. 39:4-81)

BLIND LINE OF SIGHT

Buildings, parked vehicles, or bushes may obstruct a motorist's line of sight. On rural roadways, trees or crops may obstruct a motorist's line of sight. A motorist should always slow down or stop completely to make sure there is no cross traffic before proceeding.

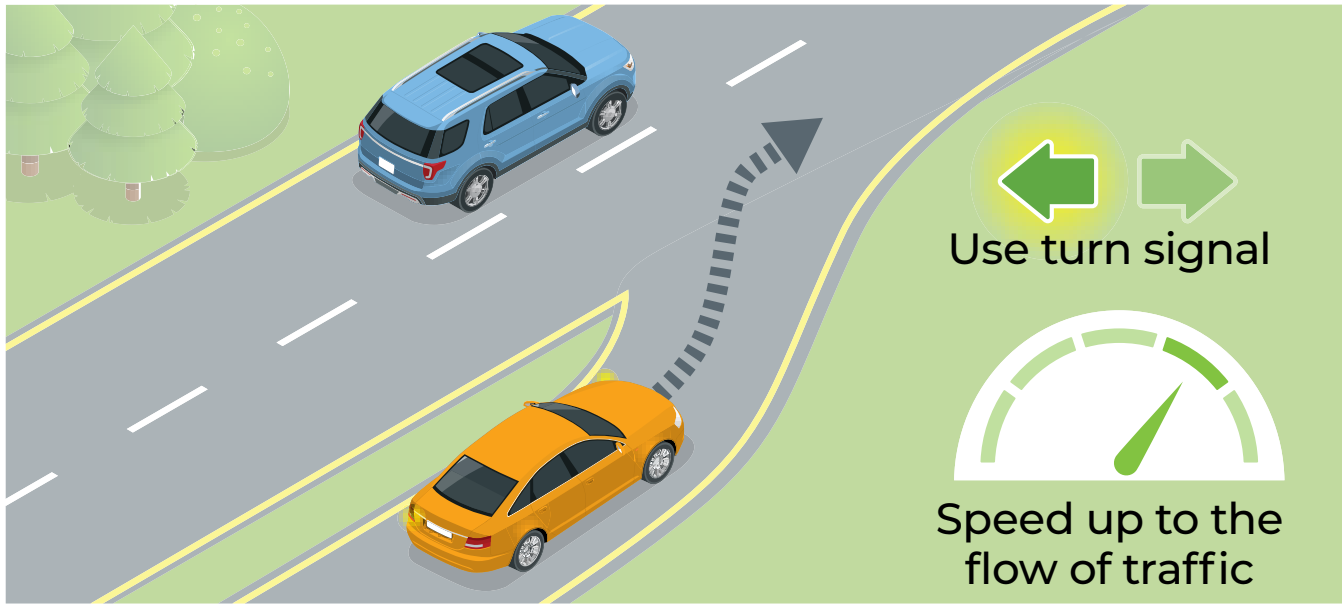
TRAFFIC CIRCLE

There are no set rules for driving into, around and out of a traffic circle in New Jersey. Common sense and caution must always prevail. In most cases, the circle's historically established traffic flow pattern dictates who has the right-of-way. If a major highway flows into and through the circle, it usually dominates the traffic flow pattern and commands the right-of-way. Traffic control signs, such as stop or yield signs, at the entrances to the circle also govern which motorist has the right-of-way. Never enter a traffic circle without checking all signs and determining the intentions of the motorists already moving within the circle.

Whenever a motorist is in doubt concerning who has the right-of-way in a circle, he/ she should exercise extreme caution and remember the basic rule governing any uncontrolled intersection: The vehicle to the left yields the right-of-way to the vehicle approaching from the right.

Entering Highways, Parkways, and Turnpikes

Highways, parkways, and turnpikes are high-speed (up to 65 mph) divided roadways and generally have multiple lanes. Traffic on each side of the divide will travel in only one direction. There are no direct intersections. Motorists enter these roadways by way of acceleration lanes, which are extra lanes at highway entrances used by motorists to speed up to join the flow of traffic. A motorist must yield to traffic already traveling on the main road before moving into the proper lane.



Keep the following points in mind when entering a highway, parkway, or turnpike:

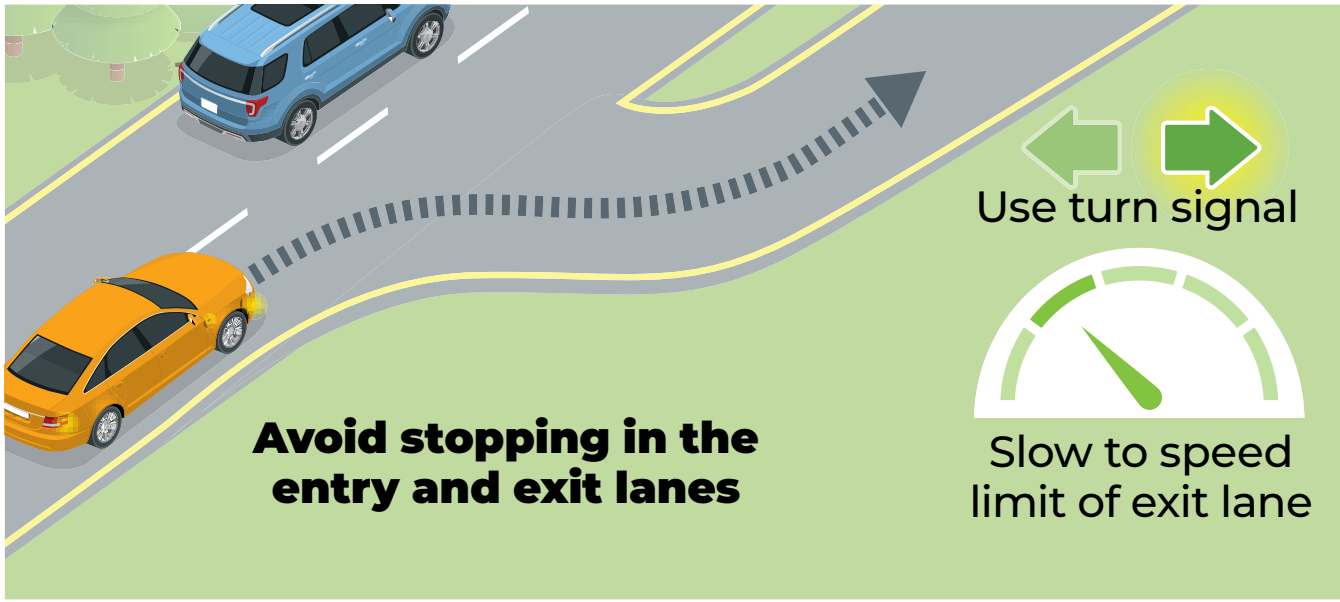
- Obey posted advisory speed limits (if any) at the entrance ramp.
- Speed up to the flow of traffic when leaving the acceleration lane.
- Avoid coming to a complete stop in the acceleration lane.
- Yield to traffic and enter the right-hand lane when safe.

Leaving Highways, Parkways, and Turnpikes

In most cases, exit ramps or deceleration lanes, which are extra lanes at a highway exit, are located on the right-hand side of the roadway. A motorist should always watch for signs that direct where to exit the roadway. If a motorist misses an exit ramp on a highway, parkway, or turnpike, he/she should go to the next exit.

Keep the following points in mind when leaving a highway, parkway, or turnpike:

- Start slowing down when entering a deceleration lane.
- Obey the posted advisory speed limit of the deceleration lane.



- When the exit is located on the left of a roadway, look for signs that will direct traffic to the proper lane for exiting.
- If you miss an exit, go on to the next one.
- Never back up on an exit ramp or deceleration lane.

Special Highway, Parkway, and Turnpike Conditions

WEAVE LANE

A weave lane is both an entrance and an exit for an expressway. Traffic may come onto and leave the expressway at the same location. This traffic weave causes conflicts, both for motorists using a weave lane and those on the expressway and entrance ramp (in terms of speed and space adjustments). The motorist entering from the entrance ramp must yield the right-of-way to the motorist leaving the expressway.

HIGHWAYS THROUGH CITIES

The volume of traffic may increase dramatically. Speeds may slow to a crawl. The motorist should drive in the left or center lane to avoid merge conflicts during rush hour. A motorist should search for exits early and adjust position for exit.

DISABLED VEHICLES

When seeing a disabled vehicle ahead, a motorist should reduce speed and increase the space between his/her vehicle and the disabled vehicle. This may involve changing lanes. Be alert for pedestrians, tow trucks, and/or police vehicles. (See New Jersey's "Move Over" law later in this chapter.)

If a motorist's vehicle becomes disabled, he/she must:

- Pull off as far as possible onto the shoulder or median.
- Turn on emergency flashers.
- Raise the hood to signal for assistance.
- Stay in the vehicle, keep your seatbelt on and lock the doors.
- If available, use a cell phone to call for help.
- Ask anyone who stops to go to a phone and call for assistance.
- Not get into a stranger's vehicle.

CONSTRUCTION AREAS

A motorist should always stay alert for construction-area warning signs. When coming across these areas, a motorist should adjust speed and adjust position to maintain space around his/her vehicle.

TOLL BOOTHS

A motorist should stay alert for toll booth signs and begin reducing speed early, as traffic may be backed up at the booth. Green lights or signals high-light open booths. A motorist should be aware of EZ Pass booths and lanes, including high speed EZ Pass lanes. When exiting toll booths, a motorist should search traffic to both sides for merging potential, accelerate smoothly and adjust speed.

Curves

It is important for a motorist to adjust steering and speed when approaching a curve in the road. The best way to enter a curve is to slow down before entering and avoid drifting into another lane. A motorist should always watch for vehicles that may drift into his/her lane as well. Check for Curve Ahead warning signs and recommended speeds.

Interchanges

Divided roadways are built for express traffic. To ease traffic flow, there are usually no traffic lights or direct intersections. To enter or exit such an expressway, a cloverleaf turn is often necessary. A motorist should watch for entrance and exit signs and drive slowly in the circle, obeying the posted speed limit.

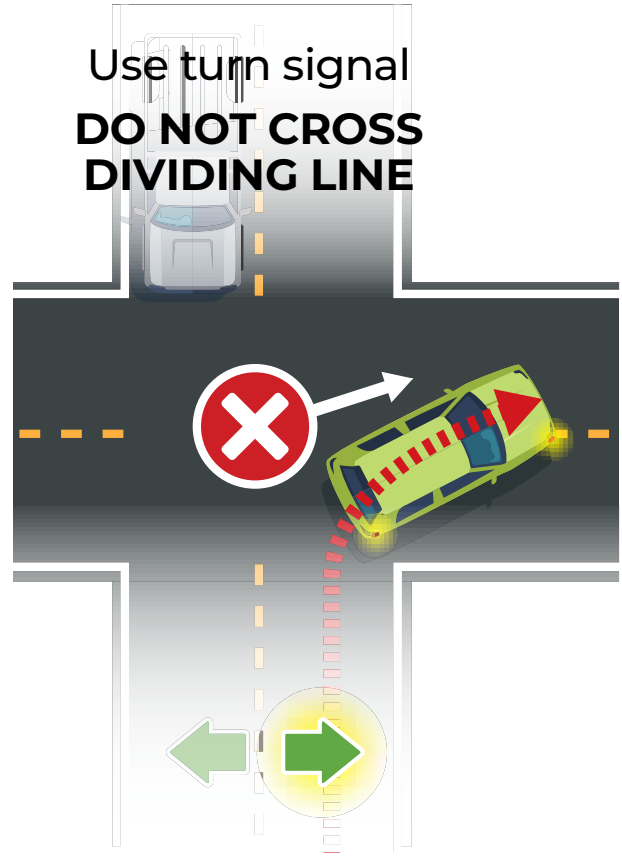
Turning Regulations

RIGHT TURN ON RED

Unless a No Turn on Red sign is posted, New Jersey law authorizes a right turn on a red light after a motorist comes to a full stop and checks for traffic. A motorist must yield to all oncoming traffic and pedestrians before turning right at a red light. Difficult-to-see vehicles, such as bicycles and mopeds, may have a green light, so it is important for a motorist to be aware of their presence. (N.J.S.A. 39:4-115) Always use a proper turn signal at least 100 feet before making any turn and cancel the signal after completing the turn. (N.J.S.A. 39:4-126)

RIGHT TURNS (N.J.S.A. 39:4-123)

To make a safe right turn, a motorist should approach the intersection as far to the right as possible, keeping near to the curb or parked vehicles. The motorist should not swing outward or into another lane while making the right turn. He/she should drive up to the turn as far to the right as possible, keeping close to the right curb or parked vehicles at the curb. Proper vehicle positioning prior to a right turn reduces the chance of another vehicle being in the space on the right as the motorist makes the turn. He/she should not swing into the wrong lane while making the turn.



LEFT TURNS (N.J.S.A. 39:4-123)

Left turns, two vehicles: When two vehicles meet at an intersection and both have signaled to turn left, extra caution must be applied. When safe, each motorist should turn to the left of the center of the intersection.

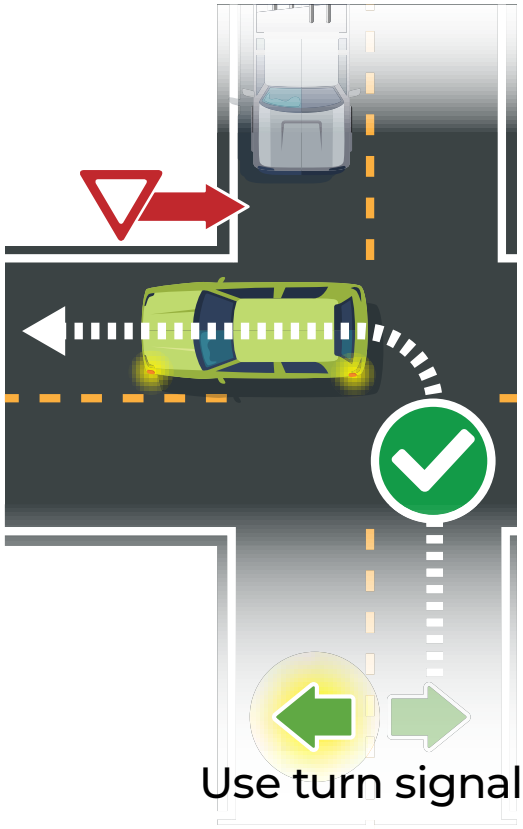
Left turn from a one-way road on to a one-way road: Approaching the turn in the left lane, the motorist should turn into the left lane of the road he/she is entering.

Left turn from a two-way road onto a two-way road: Approach the turn as close as possible to the line nearest to the center of the road. When turning, the vehicle should not cross lane markings. The motorist should keep to the right of the center of the line of the road that the vehicle is entering.

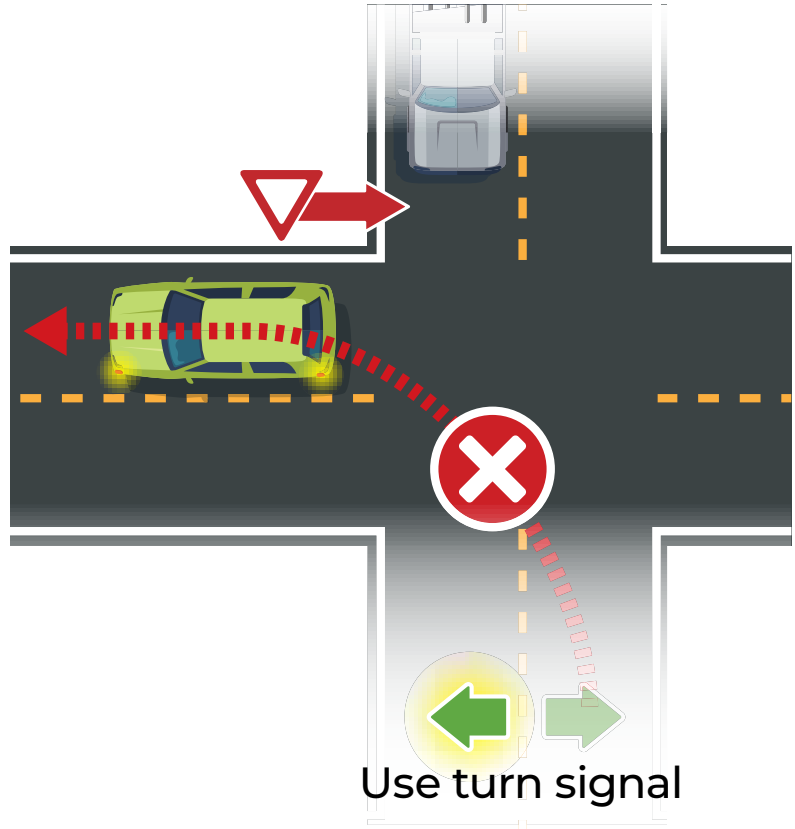
Left turns, between intersections: Between intersections, solid lines show when not to pass. However, these lines may be crossed with care when entering or leaving driveways in business or residential areas.

Left turn from a two-way road onto a four-lane highway: Approach the turn as close to the center line to the right side of the road as possible. Make the turn before reaching the center of the intersection.

It is important not to cross lane markings. The motorist should turn into the lane nearest the center line of the right side of the other road. This is the passing lane of the four-lane highway. When traffic permits, the motorist should move to the right, out of the passing lane.



Yield to oncoming traffic

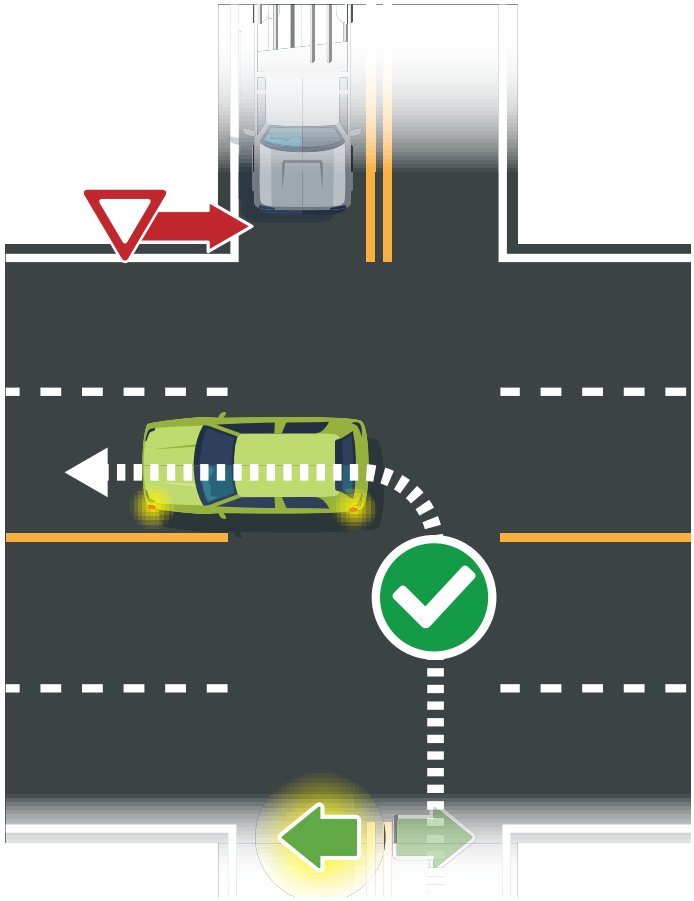


Don't cut corners

Stopping Regulations

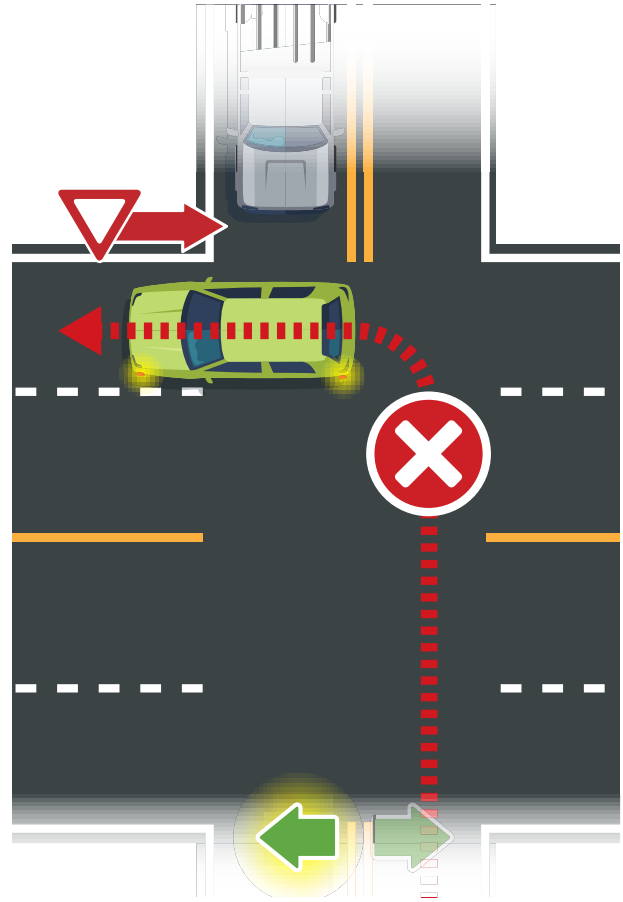
Signs, signals, and traffic rules indicate when a motorist must stop. A motorist must be careful when traveling through an intersection and exercise caution when proceeding from a red light after the light turns green. There may be other vehicles coming through or still in the intersection.

Most crashes at traffic signals happen in the first few seconds after the light has changed. When a yellow light follows a green light, a motorist must stop before entering the intersection, unless yellow appears when the vehicle is too close to stop safely. If the light changes while a driver is already in the intersection, he/ she should go through with caution. Be alert for a stale green light; this is a light that has been green for some time.



Use turn signal

Yield to oncoming traffic



Use turn signal

Don't turn wide

Be prepared for it to change to yellow and then to red. Slow down and stop accordingly.

A motorist must stop:

- At an intersection with a stop sign.
- At an intersection with a red light either flashing or illuminated.
- At an intersection with a yellow light after a green light, unless too close to stop safely.
- When a traffic officer orders the vehicle to stop.

- When there is a yield sign and traffic does not permit a safe merge.
- When a school bus is picking up or letting off children and/or the red lights are flashing.
- When coming from an alley, private driveway, or building.
- At a bridge span that is about to open for boat traffic.
- For a blind pedestrian using a white or metallic walking cane, or a trained guide dog, or a guide dog instructor engaged in instructing a guide dog.
- For a pedestrian in a crosswalk or at an intersection.
- For a motorized wheelchair or mobility-assistance device in a crosswalk or at an intersection.

Single white lines show motorists where to stop at stop signs or traffic signals.

STOP AT RAILROAD CROSSINGS

To ensure public safety, the New Jersey Department of Transportation (NJDOT) and railroads mark public highway rail-grade crossings, also known as railroad crossings with one or more warning devices. Warning devices include advance-warning signs, pavement markings in front of a railroad crossing's flashing red lights (usually on railroad crossing signs), gates or gates with flashing red lights, ringing bells, and flag signals.

A motorist must stop at least 15 feet from a railroad crossing when there are flashing red lights, ringing bells, descending or lowered gates, or flag signals. Flashing red lights, ringing bells, descending gates or gates that have already been lowered indicate that a train is coming, and a motorist must stop. A motorist should never cross until the gates have been raised, the bells have stopped ringing and the red lights have stopped flashing. (N.J.S.A. 39:4-127.1) Never race a train. A motorist can underestimate the speed and distance of trains. Most trains need more than a mile to stop if traveling at 60 mph or more.

Special Circumstances:

Some vehicles, such as school buses, buses, or vehicles carrying hazardous materials must always stop at railroad crossing. When driving behind one of these vehicles, a motorist must be prepared to stop, even if the signals do not indicate a train is coming. (N.J.S.A. 39:4-128)

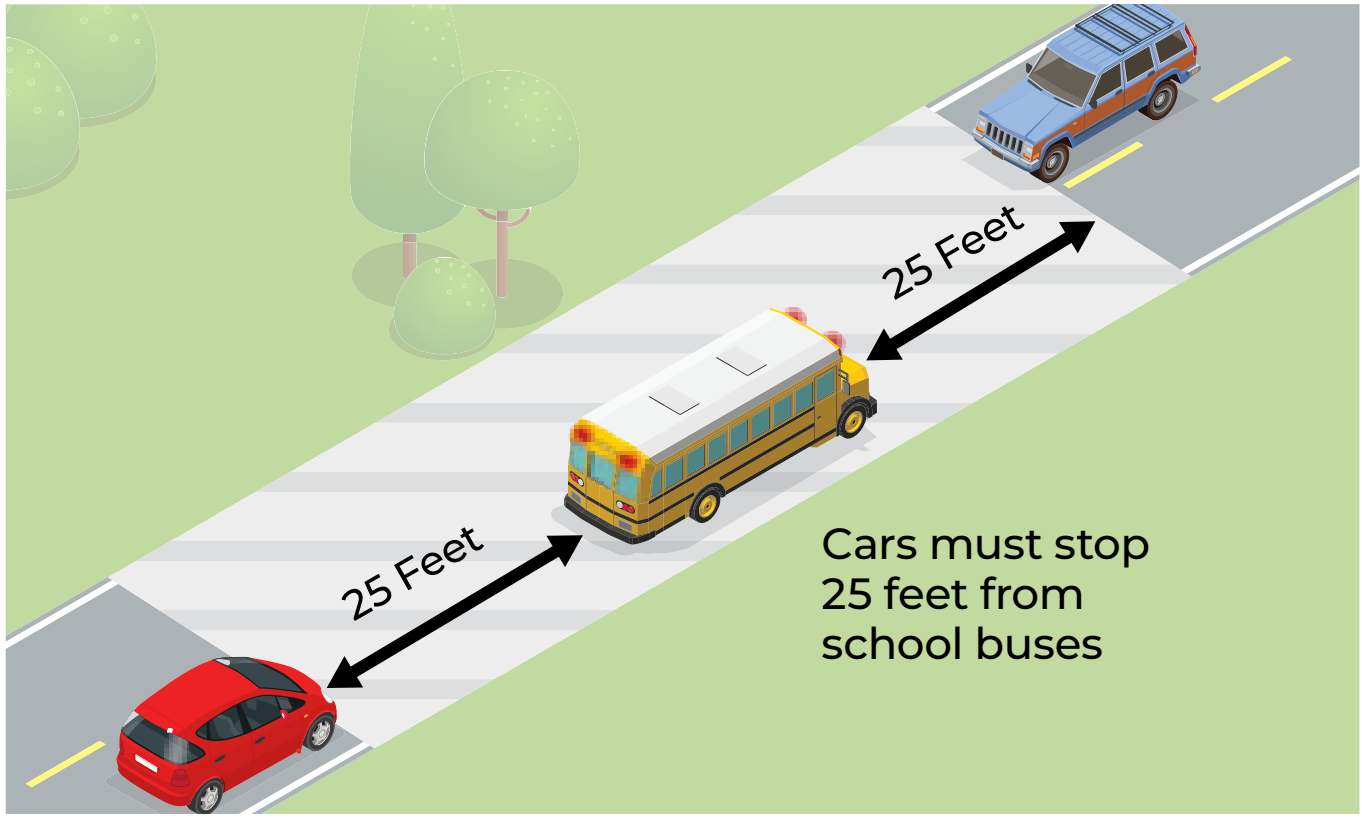
A motorist should never stop his/her vehicle on railroad tracks. When crossing railroad tracks, a motorist should make sure there is room on the other side to get completely across. If warning devices activate while a motorist is crossing railroad tracks, he/she should immediately proceed to the other side.

STOP FOR SCHOOL BUSES (N.J.S.A. 39:4-128.1)

A motorist must stop for a school bus with flashing red lights. State law requires a motorist to stop at least 25 feet away if he/she is traveling on a two-lane road or on a multi-lane highway where lanes are only separated by lines, or on a privately maintained road. When traveling on a dual-lane highway, a motorist should slow to 10 mph if on the other side of a safety island or raised median. School buses are equipped with yellow (or amber) and red flashing lights. The yellow (or amber) lights go on before the bus stops and the red lights go on when the bus has stopped. However, a motorist should not depend on these lights, if driving behind a school bus. They could be malfunctioning.

When a school bus stops, all motorists traveling behind or approaching the bus must stop their vehicles at least 25 feet away. A motorist should only proceed after the bus signals have been turned off and even then, he/she must watch for children or persons who have developmental disabilities.

If a school bus has stopped directly in front of a school to pick up or let off children or persons with developmental disabilities, a motorist may pass from either direction at a speed of no more than 10 mph.



STOP FOR FROZEN DESSERT TRUCKS (N.J.S.A. 39:4-128.4)

When approaching or overtaking an ice cream or frozen dessert truck from either direction, and the truck is flashing red lights and posting a stop signal arm a motorist must:

- Yield the right-of-way to any person who is crossing the roadway to or from the truck.
- Watch out for children and be prepared to stop.
- Stop, and then drive past the truck at a speed of no more than 15 mph.
- A motorist need not stop on a dual highway if he/she is on the other side of a safety island or raised median.

PULL OVER AND STOP FOR EMERGENCY VEHICLES

New Jersey law requires all motorists to yield to emergency vehicles when emergency vehicles sound sirens and/or flashing red and/or blue emergency lights. A motorist should steer to the extreme right of the roadway, stop, and wait for the emergency vehicle to pass. Afterward, the motorist should keep at least 300 feet behind a signaling emergency vehicle. (N.J.S.A. 39:4-92)

Police cars, fire trucks, ambulances or other emergency vehicles have sirens and red lights. Private vehicles operated by volunteer fire and rescue squad members (with emergency vehicle identification) responding to an emergency call use blue lights. A motorist should never park within 200 feet of a fire department vehicle in service or drive over a fire hose unless directed to do so by a fire, emergency rescue or police official.

MOVE OVER LAW

New Jersey's "Move Over" law requires all motorists approaching a stationary, authorized emergency vehicle, tow truck, highway maintenance or other emergency service vehicle that is displaying a flashing, blinking or alternating red, blue, amber or yellow light, or a configuration of lights containing one of these colors, to change lanes, safety and traffic conditions permitting, into a lane not adjacent to the stationary emergency vehicle. If a lane change is impossible, prohibited by law or unsafe, the motorist must reduce the speed of his/her vehicle to a reasonable and proper speed that is lower than the posted speed limit and be prepared to stop, if necessary. Motorists who violate this law face a fine of not less than $100 and not more than $500. (N.J.S.A. 39:4-92.2)

SAFE DRIVING RULES AND REGULATIONS

MESSAGE FROM THE ATTORNEY GENERAL

For many people, being pulled over by a Police Officer while driving a vehicle can be a stressful event. In order to make the traffic stop as safe and pleasant as possible for all involved, here are some important tips:

- Pull over in a safe place as soon as possible.
- Be courteous, mutual respect between the officer and the driver is expected and encouraged.
- Have your license, insurance card and registration in a place you can easily access.
- Turn down your music.
- If you are stopped at night, turn on your dome and/or interior lights. This will increase the visibility inside your vehicle so the Officer will be less concerned about what he or she cannot see.
- Roll down your window.
- Keep your hands visible, preferably on the steering wheel.
- Do not make sudden movements, particularly if the movements involve reaching into areas not visible to the Officer. If you must reach for something, wait for the Officer to come to your vehicle and tell the Officer what you are planning to do before you do it.
- Stay calm and communicate with the Officer.

Using Headlights

Proper use of headlights is critical to safe driving. Headlights must be used between one-half hour after sunset and one-half hour before sunrise. Headlights must also be used when visibility is 500 feet or less, when using windshield wipers (during rain, snow, and ice) or when encountering fog, mist, smoke, or other factors that reduce visibility. (N.J.S.A. 39:3-46)

Being able to see clearly while driving is especially important. A vehicle's lights should always be in good working order and clean. Headlights help other motorists see approaching vehicles. Parking or auxiliary lights cannot legally be used in place of headlights when headlights are required.

BRIGHT AND DIM

Headlights have two sets of beams: bright (high) and dim (low), which are controlled by a switch or button on or near the dashboard. The bright beam is for open country driving when there is no traffic in sight. The bright beam helps a motorist see farther ahead and peripherally or at a wider angle. At night, a motorist's pupils are dilated, allowing more light to aid in the ability to see. Bright beams can momentarily blind other motorists by constricting the pupils and should not be used if other vehicles are approaching or when driving behind another vehicle. It can take three to five seconds for a motorist to recover from the glare of approaching high-beam headlights. At a speed of 50 mph, a motorist will have traveled the length of a football field while being unable to see. If a vehicle is approaching with high beams, a motorist should look to the right of the road until the vehicle passes. Never flash high beams at an approaching motorist.

The dim beams are used for city driving and driving in traffic on roadways. Dim beams are focused down on the road. Dim beams are used when traveling behind other vehicles or when another vehicle is approaching.

OTHER TYPES OF LIGHTS

Parking lights

Parking lights are to be used for a short period of time, such as when a vehicle is left in a permitted zone, to show other motorists where a vehicle is parked. Parking lights are required on vehicles parked in areas other than business or residential zones.

Taillights
Taillights turn on at the same time as a vehicle's headlights and parking lights. They become brighter when a motorist applies the brakes to show that he/she is slowing or stopping. During the day, without headlights, the taillights also turn on as a motorist applies the brakes.

Brake lights
Brake lights become brighter when a motorist applies the brakes, showing that the vehicle is slowing or stopping.

Interim (overhead) lights
Found inside the vehicle, these types of lights should be used only briefly (when necessary) when driving or to comply with a police officer's request to illuminate the motorist's compartment of the vehicle when stopped.

Dashboard lights
If dashboard lights are too bright, they may create a glare for the motorist and impede vision. The lights should be kept dim but still light enough for a motorist to read the dials.

Spotlights
Spotlights should be used only in emergencies. This also applies to emergency flashers (hazard lights). Spotlights may not be used for driving purposes.

Fog lights
These auxiliary driving lights may be used with low-beam headlights to provide general lighting ahead of a motor vehicle, specifically during foggy weather conditions. (N.J.A.C. 13:20-32.25)

Parking Regulations

A motorist should always check for traffic when leaving a vehicle after parking. He/she should also check for bicycles or mopeds, which are sometimes difficult to see, before opening the driver-side door and exiting the vehicle. A motorist opening a door into traffic may be liable for any crash with a moving vehicle. It is safer for passengers to exit a parked vehicle from the curbside. A motorist should read parking signs before parking on a city street to be aware of restrictions or time limits. It is illegal for a vehicle to be parked more than six inches from the curb. (N.J.S.A. 39:4-135) Never park where a vehicle will block traffic.

DO NOT PARK(N.J.S.A. 39:4-138)

Unless directed to do so by a police officer or to avoid a crash, a motorist should never stop or park at any of the following places:

- On a crosswalk.
- Between a safety zone for pedestrians and the adjacent curb or within 20 feet of the end of the safety zone.
- Near properly marked street construction.
- In a space on public or private property marked for vehicle parking for persons with a disability (unless legally authorized).
- On an interstate highway.
- On a sidewalk.
- In a bus stop zone.
- In front of a public or private driveway.
- Within an intersection.
- Within 10 feet of a fire hydrant.
- Within 25 feet of a crosswalk at an intersection or sideline of a street or intersection highway, except at alleys.
- Within 50 feet of a railroad crossing.
- Within 50 feet of a stop sign.
- Within 20 feet of the driveway entrance to any fire station and within 75 feet on the street opposite a fire station entrance.
- On any bridge or elevated roadway or in any tunnel.
- Next to another vehicle parked at the curb (double parking).
- In an area where parking is prohibited by municipal ordinance.

In case of mechanical trouble or other emergency, a motorist should stop on the right highway shoulder and turn on emergency flashers.

Cellular Telephones

State law prohibits the use of handheld electronic devices (such as cellular telephones) while driving a motor vehicle on any public road or highway. Using a handheld cellular telephone or texting device is a primary offense. Law enforcement may stop and cite a motorist specifically for these actions. Motorists are permitted to use a hands-free cellular telephone if it does not interfere with any federally required safety equipment or with the safe operation of the vehicle. Although the use of a hands-free cellular telephone is legal, it is strongly discouraged.

A handheld cellular telephone may be used only in certain emergency situations, which include:

- Fire.
- Traffic crash.
- Serious road hazard.
- Medical emergency.
- Hazardous material emergency.

Motorists in the above-mentioned circumstances must keep one hand on the steering wheel while using a handheld telephone. To prove legal use of a handheld telephone while operating a motor vehicle, a motorist may be asked to produce testimony or written statements from appropriate authorities, or telephone records. The fine for breaking this law is $200-$400 for a first offense, $400-$600 for a second offense within 10 years of the first offense, $600-$800 for a third offense within 10 years of the second offense and for all subsequent offenses. A person convicted of a third or subsequent violation shall also be assessed three motor vehicle penalty points. (N.J.S.A. 39:4-97.3) There may be a 90-day license suspension as well.

"Kulesh's, Kuberts' and Bolis' Law," enacted in 2012, establishes illegal use of a cell phone while driving as recklessness under the vehicular homicide (N.J.S.A. 2C:11-5) and assault by auto (N.J.S.A. 2C-12-1) statutes. The intent and effect of this law is to make it easier for prosecutors to obtain convictions for vehicular homicide or assault by auto against a person who illegally uses a cell phone while driving and, as result, kills or injures someone.

A graduated driver license (GDL) holder may not use a handheld or hands-free cellular telephone, or any other handheld electronic device, when behind the wheel. Doing so is a violation of GDL restrictions. (N.J.S.A. 39:3-13, 39:3-13.2a, 39:3-13.4)

A school bus driver may not use a handheld or hands-free cellular telephone while operating a school bus, except in an emergency or when the school bus is parked in a safe area off a highway. (N.J.S.A. 39:3B-25)

Littering

Throwing trash, debris or rubbish from a moving or parked vehicle is illegal. Litter is a safety hazard and an eyesore. Fines of up to $1,000 may be imposed on motorists found throwing dangerous objects from a vehicle onto a roadway. If the vehicle is moving when litter is thrown, the motorist may lose his/her license. All trash, debris or rubbish carried in a vehicle must be covered to keep it from littering the roadway. (N.J.S.A. 39:4-63, 39:4-64)